

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TZ SSE BUYER, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 24-09

Served: May 15, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING IN PART COMPLAINANT’S MOTION TO COMPEL

I. Background

On April 11, 2025, Complainant TZ SSE Buyer, LLC filed a motion to compel interrogatory responses and production of documents. Dkt. 46. Complainant also filed a motion to exceed the page limits on April 14, 2025. Commission Rule 71 provides that non-dispositive motions, such as motions to compel, may not exceed 10 pages without leave of the presiding officer. Complainant’s motion sought leave to exceed the 10-page limit based on the “number and complexity of the discovery issues raised,” and Respondent COSCO Shipping Lines Co., Ltd. did not oppose the motion on the condition that it be granted leave to exceed the page limits in its response. Unopposed Motion for Enlargement of Page Limits, Dkt. 47. I find there is good cause to allow the parties to exceed the page limits, and so the motion will be GRANTED *nunc pro tunc*. On April 18, 2025, COSCO filed a response to the motion to compel. Dkt. 48.

In Commission proceedings, generally, parties may obtain discovery regarding any nonprivileged matter that is relevant to any party’s claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. 46 C.F.R. § 502.141(e)(1). Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence. *Id.* Discovery may be limited where it is unreasonably cumulative or duplicative, or where the burden or expense of the proposed discovery outweighs its likely benefit considering the needs of the proceeding, the amount in controversy, the parties’ resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues. 46 C.F.R. §§ 502.141(e)(2)(A) and (C). Interrogatories are limited to 50, including all discrete subparts. 46 C.F.R. § 502.145(a). Objections to interrogatories must be stated with specificity. 46 C.F.R. § 502.145(b)(4).

A party may file a motion to compel answers to interrogatories or document requests, and the motion must include: a certification that the moving party has conferred in good faith in an effort to obtain compliance without the need for a motion, a copy of the disputed requests, a copy

of any answer provided, the certificate of service that accompanied the discovery requests, and any supporting argument. 46 C.F.R. § 502.150 (a)(2). Complainant's motion to compel satisfies these requirements. Mot. to Compel, Ex. 2 (certificate of consultation), Ex. 3 (requests and answers), and Ex. 4 (certificates of service for initial and supplemental requests). For the reasons discussed below, Complainant's motion will be GRANTED IN PART.

II. Discussion

Complainant seeks an order compelling responses to its Interrogatory 5, Requests for Production 3, 7, 8, 11, and Supplemental Interrogatories 4, 8, 10-14, and 16. Each of these requests is addressed in numerical order below.

Interrogatory 5. Identify and describe in detail Your relationship with Complainants and Laufer Group International (if any) connected with or relating to the shipments and Charges referenced in the Complaint. If You did not have a relationship with Complainants and/or Laufer Group International, identify and describe in detail the third-party with whom You had a relationship connected with or relating to the shipments and Charges referenced in the Complaint.

ANSWER: Respondent objects to this Interrogatory as vague with respect to what is meant by Respondent's "relationship" with Complainants and Laufer Group International and what is meant by "the shipments and Charges in the Complaint." Notwithstanding this specific objection and the General Objections set forth above, Respondent states as follows:

Respondent is a vessel operating common carrier ("VOCC"). Laufer Group International is a non-vessel operating common carrier ("NVOCC"). It appears that Complainants were the customers of Laufer Group International, who may have acted as consignee or notify party for shippers in the U.S. foreign trades.

Supplemental Response: COSCO reiterates its objections. Notwithstanding those objections, COSCO states that it has no general or consistent "relationship" with Laufer. Any relationship is an *ad hoc* matter determined by the facts and circumstances of a particular shipment.

Complainant argues that COSCO's response is deficient because it fails to "describe with any specificity the nature of its commercial, contractual, or operational relationship with Laufer Group International ("Laufer") with respect to the shipments and charges referenced" in the complaint. Mot. to Compel 2. Complainant argues that COSCO is "in possession of the underlying bills of lading, invoicing records, and shipment data that identify Laufer's role in connection with each shipment," and that COSCO's failure to provide a more specific answer undermines its "ability to understand how and why the disputed charges were assessed." Mot. to Compel 2-3.

COSCO argues that its statement that it did not have a consistent “relationship” with Laufer, but rather an *ad hoc* relationship based on the details of each shipment, is an adequate response, and that all disputed charges relate to shipments that were transported pursuant to service contracts between COSCO and companies located in Asia, which it has disclosed to Complainant. Resp. to Mot. to Compel 3. COSCO also states that it has produced the underlying documents related to the disputed charges, satisfying any further obligation to respond to this interrogatory by means of producing business records. Resp. to Mot. to Compel 4.

I agree with COSCO’s objection that this interrogatory is vague. Beyond the answer already provided by COSCO, and any information regarding transactions between COSCO and Laufer contained in the documents COSCO has already produced, it is not clear what else Complainant means by the undefined term “relationship.” The party moving to compel discovery has the burden of proving that the opposing party’s answers were incomplete. *Williams v. Ct. Servs. & Offender Supervision Agency*, No. 08-CV-1538 (RWR-AK), 2013 WL 12321547, at *2 (D.D.C. Mar. 25, 2013). In responding that its relationship with Laufer and Complainant was not “general or consistent” and was based on the particulars of each shipment, and then providing information regarding the service contracts pursuant to which the disputed charges were assessed and the underlying documents relating to those charges and shipments, COSCO has made seemingly reasonable answer this interrogatory. See 46 C.F.R. § 502.145(d) (option to produce business records in response to interrogatory). Given the vagueness of the question, if I were to order COSCO to provide a supplemental answer, it is not clear what additional details I would order them to provide. Complainant has not been specific in its motion as to what additional information it requires, and it is not clear to me, based on the argument presented, that further information about a “relationship” between COSCO and Laufer or Complainant would shed any light on “how and why” the disputed charges were assessed.

RPD 3. Produce any and all documents, including but not limited to, invoices and payment records corresponding to such invoices, bills of lading, service contracts, and any other shipping documents, in any way connected with or relating to the shipments and Charges that You issued directly to Complainants or indirectly to Complainants through Laufer Group International (or their agents/representatives), or any other Person(s), including but not limited to a third-party shipping carrier, forwarder or agent, during the Relevant Period as referenced in the Complaint.

RESPONSE: Respondent objects to this Request for Production to the extent that it seeks information already in Complainants’ possession, as Complainants would be in the best position to know what charges were levied and what they paid for the Charges about which they have filed the instant complaint. Respondent further objects to this Request as vague with respect to what is meant by “the shipments and Charges that You issued.” Respondent objects to RP3 as vague, overbroad and unduly burdensome, and to the extent that it is duplicative of documents already in Complainant’s possession, custody, or control. It is not possible without further information for Respondent to identify the shipments and other documents requested by this Interrogatory. Respondent also objects to this RPD3 to the extent it suggests Respondent issued anything directly or indirectly to Complainant. Subject to and without waiving any of its foregoing objections,

Respondent will, to the extent it is able, produce nonprivileged documents responsive to this request once the Parties have reached agreement on an ESI Protocol, stipulated to confidential treatment of commercially sensitive documents and a Protective Order has been issued.

First addressing COSCO's objection as to vagueness – to the extent “shipments and Charges that You issued” is unclear, Complainant's reference to the complaint clarifies that this request for production seeks information about the disputed charges and time frame in the complaint. This request for production, more simply stated, asks for all documents related to those disputed charges. Further clarifying the request, Complainant produced a spreadsheet of its damages, identifying bills of lading, container numbers, and associated charges at issue. Mot. to Compel, Ex. 1. COSCO's objection as to vagueness is overruled.

Complainant asks that COSCO be compelled to produce documents corresponding to these shipments on its damages spreadsheet and that, while COSCO has produced some documents, “many are still missing.” Mot. to Compel 4. Complainant does not identify the shipments for which documents are allegedly missing. COSCO maintains its objections, stating that it has produced the responsive documents, but that some shipments involve charges not invoiced by COSCO or payments made to COSCO. Resp. to Mot. to Compel 5. COSCO does not specify the shipments for which it contends it has produced responsive documents, or those for which it contends there is no charge from COSCO.

COSCO's objection as to burden is not well founded and is overruled. While the initial responsibility of establishing relevance lies with the party seeking the information, “the burden is on the refusing party to show that the movant's request is burdensome, overly broad, vague or outside the scope of discovery.” *Prasad v. George Washington Univ.*, 323 F.R.D. 88, 92 (D.D.C. 2017) (quoting *United States v. Kellogg Brown & Root Servs., Inc.*, 284 F.R.D. 22, 33 (D.D.C. 2012). Documents of the type specified (invoices, payment records, etc.) regarding the disputed subject matter are the types of documents routinely requested and found to be relevant in all types of proceedings. Given the relevance of these documents, it is COSCO's burden to show how the request is unduly burdensome. The only argument made in this regard is that the documents are already allegedly in Complainant's control.

A party ordinarily cannot refuse to produce documents within its possession, custody, or control on the grounds that the materials may already be in the requesting party's possession.” Fed. R. Civ. P. 34 rules and commentary to February 2018 update; *see also P.R. Med. Emergency Grp., Inc. v. Iglesia Episcopal Puertorriquena, Inc.*, 318 F.R.D. 224, 230 (D. P.R. 2016) (“Courts have held that a responding party is required to produce documents in its possession, custody, or control regardless of whether the requesting party is already in possession of the requested documents.”) (citing cases). There is also nothing vague about the request, as stated above, it seeks any documents related to the disputed charges. This is relevant to Complainant's claims and COSCO does not explain why it would be “unduly burdensome” to search its records against the information in Complainant's damages spreadsheet other than to point out that the documents may already be in Complainant's control. This would not necessarily be the case with respect to any documents related to the disputed charges that COSCO sent to entities other than Complainant, and even if Complainant did have the

documents, that would not relieve COSCO of the duty to produce them in the absence of a concrete showing of undue burden.

To the extent COSCO has declined to search its records or to produce documents on the basis that such documents may already be in the possession of Complainant, COSCO must search its records and produce any documents in its possession, custody, or control of the type specified in Complainant's Request for Production 3 that are related to the shipments in Complainant's damages spreadsheet.

RPD 7. Produce any and all communications between Complainants, Laufer Group International (or their agents/representatives), drayage companies and transportation companies for Complainants, and/or Respondents (or its agents/representatives), or any other Person(s), including but not limited to a third-party shipping carrier, forwarder or agent, that is connected with or relating to the shipments and Charges referenced in the Complaint.

ANSWER: Respondent objects to this Request for Production on the grounds that it is overly broad and unduly burdensome with respect to its request for "any and all communications" involving literally "any ... Person" about anything relating to the shipments or Charges in the Complaint. Respondent further objects to this Request as vague with respect to what is meant by "the shipments and Charges referenced in the Complaint." Notwithstanding these specific objections and the General Objections, *supra*, Respondent states as follows: Respondent states that it will provide responsive documents when a Protective Order has been issued.

RPD 8. Produce any and all communications between Complainants, Laufer Group International (or its agents/representatives), Respondents (or its agents/representatives), and/or any other Person(s), including but not limited to a third-party shipping carrier, forwarder or agent, connected with or relating to the Charges You assessed to Complainant as alleged in the Complaint.

RESPONSE: Respondent objects to this Request for Production on the grounds that it is overly broad and unduly burdensome with respect to its request for "any and all communications" involving literally "any ... Person" about anything relating to the shipments or Charges in the Complaint. Respondent further objects to this Request as assuming information not in evidence, as Complainants have not demonstrated that Respondent assessed any charges to Complainants.

Complainant argues that COSCO's production in response to Requests for Production 7 and 8 has been "wholly inadequate." Mot. to Compel 5. COSCO responds that it undertook a comprehensive search, running references to each of the bills of lading in Complainant's damages spreadsheet against data collected from likely custodians, including word searches against its customer service portals. Resp. to Mot. to Compel 6.

Based on the information presented in the motion to compel, I have no basis to determine that COSCO's search was "wholly inadequate." A search needs to be reasonable, not perfect. Reasonableness is based on the totality of the circumstances. Generally, courts find a search to be reasonable if the responding party can describe its search to a sufficient degree of specificity to conclude that it fairly construed the request and fashioned a search reasonably calculated to respond to the request, and that the potential benefit of additional searching is outweighed by its burden (with respect to the time and money already expended on the search, the responsiveness rate of previous searches, or other factors). *Prasad v. George Washington Univ.*, 323 F.R.D. 88, 92–94 (D.D.C. 2017). It is not my role to dictate to a party how it should search its own documents unless there is a specific showing that it has abdicated its responsibility to do so. *Id.*

Complainant's expectation that there would be more documents, without something more specific, is inadequate to support an order compelling COSCO to undertake additional searches. Without some factual basis from which I can determine that documents relating to the disputed charges have been withheld or overlooked, it is not appropriate for me to inquire further into the adequacy of COSCO's search. *Cf. In re Denture Cream Prod. Liab. Litig.*, 292 F.R.D. 120, 126 (D.D.C. 2013) (where documents produced by subpoenaed party allowed reasonable inference that other documents existed, and where production was so disorganized as to limit usefulness, there was sufficient evidence to conclude that further searching and production was warranted).

RPD 11. Produce any and all documents connected with or relating to your common practices, policies and regulations in assessing demurrage, detention, per diem and yard storage charges, such as the Charges issued to Complainants during the Relevant Period as referenced in the Complaint.

RESPONSE: Respondent objects to this Request for Production as overly broad with respect to its request for "any and all documents" that relate to Respondent's assessment of any type of charges. Respondent further objects to this Request as vague with respect to what is meant by "the Charges issued to Complainants." Respondent objects to RPD11 as vague, overbroad and unduly burdensome and to the extent the request implies Respondent assesses "yard storage charges." Respondent also objects to this Request to the extent it suggests Respondent issued anything directly or indirectly to Complainant. Subject to and without waiving any of its foregoing objections, Respondent will produce non-privileged documents responsive to this request once the Parties have reached agreement on an ESI Protocol, stipulated to confidential treatment of commercially sensitive documents and a Protective Order has been issued.

COSCO objects that this request is overly broad because it seeks "any and all documents" that relate to any type of charge. It is unclear how COSCO could reasonably believe this request relates to "any type of charges" when it specifically references four types of charges (detention, demurrage, per diem, and yard storage) and further qualifies the list by limiting it in time and scope to the specific charges at issue in the complaint. A request for "any and all documents" is not improper when the request is confined to an identifiable category of documents, as is the case here. *Jake's Fireworks, Inc. v. Sky Thunder, LLC*, No. 16-CV-2475-JAR-GLR, 2017 WL 4037705, at *5 (D. Kan. Sept. 13, 2017). And while the phrase "Charges issued to Complainants" could be confusing in isolation, it is perfectly comprehensible in the

context of the entire sentence, which identifies four specific types of charges and makes reference to the charges at issue in the complaint – this request fairly encompasses any documents describing general practices related to charging demurrage, detention, and similar charges.

COSCO states that it does not keep its policies “in a policy book or binder.” Resp. to Mot. to Compel 7. Where the policies are kept is immaterial. COSCO’s detention and demurrage policies are relevant to this case, Complainant’s request is properly tailored and comprehensible, and COSCO must produce any responsive documents in its possession. COSCO’s referral to its website and online tariff is not a sufficient response. The first link in its response to the motion to compel is to a general landing page, with no reference to detention or demurrage. Similarly, the second link is to the tariff landing page – no reference is made to the responsive tariff rules. This response is in the nature of a document dump. A party may not bury responsive documents amidst documents unrelated to the request, forcing the requestor to sort through all of its records to find the responsive documents. *Haughton v. D.C.*, 315 F.R.D. 424, 429–30 (D.D.C.), *objections overruled*, 161 F. Supp. 3d 100 (D.D.C. 2014). If COSCO contends that the entirety of its policies related to detention and demurrage are located on these websites, it must either produce the relevant documents from those sites to Complainant in a usable form or provide links to each responsive document.

COSCO objects to Complainant’s supplemental interrogatories 8, 10-14, and 16 on the basis that they exceed the allowed number of interrogatories under the Commission’s rules. COSCO’s argument is that each interrogatory requires a discreet inquiry for each of the 525 shipments appearing on Complainant’s damages list. Resp. to Mot. to Compel 10, 14.

Commission Rule 145 limits the number of interrogatories a party may serve on any other party to 50, “including all discreet subparts.” 46 C.F.R. § 502.145(a)(1). The “discreet subpart” language is also found in FRCP 33(a)(1), and courts apply a “pragmatic approach” when determining whether an interrogatory and its subparts are sufficiently “discreet” to count as more than one question. *See Willingham v. Ashcroft*, 226 F.R.D. 57, 59 (D.D.C. 2005). Under that approach, courts ask whether the interrogatories at issue threaten “the purpose of the rule by putting together in a single question distinct areas of inquiry that should be kept separate.” *Id.* (quoting *Banks v. Office of Senate Sergeant-at-Arms*, 222 F.R.D. 7, 10 (D.D.C. 2004)). In other words, “once a subpart of an interrogatory introduces a line of inquiry that is separate and distinct from the inquiry made by the portion of the interrogatory that precedes it, the subpart must be considered a separate interrogatory no matter how it is designated.” *Id.*

Supplemental Interrogatory 4. Identify and describe in detail the nature, scope, and duration of Your relationship with Laufer in connection with or relating to the shipments and Charges referenced in paragraphs 13–15 of the Complaint as well as Exhibit A below.

ANSWER: Respondent objects to this Interrogatory as vague with respect to what is meant by Respondent’s “relationship” with Complainants and Laufer Group International and what is meant by “the shipments and Charges in the Complaint.” Respondent further objects that this information is more readily available from Complainant’s assignor Laufer Group International, into the shoes

of which Complainant has stepped. Notwithstanding this specific objection and the General Objections set forth above, Respondent states as follows: Respondent is a vessel operating common carrier (“VOCC”). Laufer Group International is a non-vessel operating common carrier (“NVOCC”). It does not appear that Respondent had a designated relationship with Laufer, except that Laufer may have acted as a booking agent for Complainant and/or Complainant’s suppliers and/or as a consignee or notify party on specific bills of lading issued by Respondent to the Shipper Party to the bill of lading and/or applicable service contract (which was never Laufer).

In Supplemental Interrogatory 4, Complainant attempts to correct the vagueness of Interrogatory 5, but fails to do so, and COSCO’s objections are sustained for the same reasons.

Supplemental Interrogatory 8. For each demurrage, detention, per diem, or other accessorial Charge that You issued as referenced in paragraphs 13–15 of the Complaint and Exhibit A, explain in detail whether each invoice included specific instructions on how to dispute the Charges. If so, specify whether the instructions included:

- a. The method(s) of contact for disputing the Charges (e.g., email, telephone, mail); and
- b. The specific information, documentation, or materials required to submit a dispute (e.g., photos, receipts, forms), and whether these requirements were clearly accessible on each invoice.

ANSWER: Respondent objects to this Interrogatory as exceeding the permissible number of interrogatories. Respondent further objects to this Interrogatory as vague, overly broad and beyond the permissible scope of discovery.

Complainant is asking COSCO to describe the instructions for disputing charges on the detention/demurrage invoices at issue. COSCO argues that, since there are 525 shipments on Complainant’s list, this counts as 525 interrogatories. But the determination of whether an interrogatory seeking information about multiple items in a group is not so facile. The Advisory Committee note to the 1993 amendment to FRCP 33, for example, states that a “question asking about communications of a particular type should be treated as a single interrogatory even though it requests that the time, place, persons present, and contents be stated separately for each such communication.” Where a question about multiple individuals or items is directed at eliciting details concerning a common theme, such questions may properly be considered a single inquiry for purposes of the limitation on the number of interrogatories. *See, e.g., Ramirez v. U.S. Immigr. & Customs Enft*, No. CV 18-508 (RC), 2019 WL 11623990, at *2 (D.D.C. June 4, 2019) (where a plaintiff asked for release and/or deportation dates and other details for age outs detained by ICE, court rejected government’s argument that the interrogatory constituted a separate inquiry as to each such person for purposes of 25-interrogatory limit); *citing Dawson v. HITCO Carbon Coposites, Inc*, No. 16-CV-7337-PSG, 2018 WL 3815032, at *3 (C.D. Cal. June 22, 2018) (“The fact that the interrogatories request information as to a number of individuals does not equate to subparts.”); *Synopsys, Inc. v. ATopTech, Inc.*, 319 F.R.D. 293, 296

(N.D. Cal. 2016) (counting as one interrogatory question that involved all four patents-in-suit because the patents were sufficiently similar and related such that they could properly be the subject of a single inquiry). On the other hand, where the underlying subjects of an interrogatory are sufficiently distinct, they may count as separate interrogatories. *See, e.g. In re ULLICO Inc. Litig.*, No. Civ.A.03-01556-RJL/A, 2006 WL 2398742, at *3 (D.D.C. July 18, 2006) (where interrogatory sought information about multiple stock offer and repurchase programs, court found the programs to be sufficiently different so as to constitute separate interrogatories).

While neither party has provided an invoice for reference, I find it unlikely that COSCO crafts individualized detention/demurrage dispute procedures on a per-invoice basis, such that supplemental interrogatory 8 would actually require 525 separate responses. Also, as COSCO notes in its response to the motion, this interrogatory is a prime candidate for a response pursuant to Rule 145(d), the option to produce business records, minimizing the burden of providing a response. COSCO's objection as to excessive number is therefore overruled. Its objection that the interrogatory is vague is, itself, vague, and so is also overruled. COSCO must provide a complete response to Supplemental Interrogatory 8.

Supplemental Interrogatory 10. Identify the specific Person(s), entities or departments within Your company responsible for assessing and invoicing the Charges to Laufer or any other Person(s), including but not limited to third-party shipping carriers, forwarders, agents, or truckers (drayage companies), in connection with the shipments and Charges referenced in the Complaint and Exhibit A.

ANSWER: Respondent objects to this Interrogatory as exceeding the permissible number of interrogatories. Respondent further objects to this Interrogatory as vague, overly broad and beyond the permissible scope of discovery.

COSCO similarly argues that this interrogatory seeks a “response *for each of the 525 shipments*,” and therefore exceeds the limit. Resp. to Mot. to Compel 12 (emphasis in original). But the interrogatory does not seek a separate answer for each invoice – it simply asks for the identity of the person or department responsible for issuing the disputed invoices. Unless COSCO employed separate departments to issue each invoice over the two-year period covered by the amended complaint, this question does not require 525 distinct answers or internal inquiries. Again, COSCO's general assertion of vagueness is unsupported and overruled. COSCO must provide a complete response to Supplemental Interrogatory 10.

Supplemental Interrogatory 11. Identify and describe in detail whether, during 2021–2022, Respondent maintained a specific department responsible for handling demurrage, detention, per diem, and other accessorial charge claims or disputes. If not, please identify and describe in detail which department or Person(s) received such claims or disputes sent to SHAPERDIEM@coscon.com, as referenced in Your answer to **Interrogatory No. 20** from Complainant's First Set of Interrogatories.

ANSWER: Respondent objects to this Interrogatory as exceeding the permissible number of interrogatories. Respondent further objects to this Interrogatory as vague, overly broad and beyond the permissible scope of discovery.

COSCO's objections to this interrogatory are the same as its objections to Supplemental Interrogatory 10. Resp. to Mot. to Compel 12. Unlike Supplemental Interrogatory 10, this interrogatory does not even reference the disputed invoices, instead seeking information about the identity of the department responsible for handling disputes during a defined time period. This is not a compound interrogatory, nor is it vague, and COSCO's objections are overruled. COSCO must provide a complete response to Supplemental Interrogatory 11.

Supplemental Interrogatory 12. Identify and describe in detail whether, during 2021–2022, Respondent had any specific guidelines or criteria for deciding whether to reduce or waive demurrage, detention, per diem, or other accessorial charges upon receiving claims or disputes at SHAPERDIEM@coscon.com. If yes, please identify and describe in detail those guidelines or criteria. If no, please explain in detail why no such guidelines or criteria existed and describe what steps were taken to decide whether such charges would be lowered or waived.

ANSWER: Respondent objects to this Interrogatory as exceeding the permissible number of interrogatories. Respondent further objects to this Interrogatory as vague, overly broad and beyond the permissible scope of discovery.

Supplemental Interrogatory 13. Explain in detail whether You considered the extraordinary/unprecedented circumstances occurring during 2021–2022—specifically the severe port congestion and equipment shortages well-known throughout the maritime transportation industry—when assessing demurrage, detention, per diem, and other accessorial charges (for example, by extending the number of Last Free Days for container pickup or drop-off). If so, please:

- a. Describe the specific considerations You made;
- b. Identify any guidelines or reports related to these considerations, and
- c. Explain how You notified Your customers, including Laufer and any other third-party carriers, forwarders, agents, or truckers (drayage companies) about extensions or accommodations.

If You did not take such circumstances into account, please explain in detail why not and what steps, if any, were taken when assessing or mitigating these charges.

ANSWER: Respondent objects to this Interrogatory as exceeding the permissible number of interrogatories. Respondent further objects to this Interrogatory as vague, overly broad and beyond the permissible scope of discovery.

COSCO's objections to Supplemental Interrogatories 12 and 13 are the same as its objections to Supplemental Interrogatory 11 and, for the same reasons, are overruled. COSCO must provide complete responses to Supplemental Interrogatories 12 and 13.

Supplemental Interrogatory 14. For the invoices in Your possession relating to the demurrage, detention, per diem, and other accessorial Charges referenced in paragraphs 13–15 of the Complaint and **Exhibit A**, identify the specific Person(s) or entity/entities who paid You for those Charges.

ANSWER: Respondent objects to this Interrogatory as exceeding the permissible number of interrogatories. Respondent further objects to this Interrogatory as vague, overly broad and beyond the permissible scope of discovery. Respondent further objects to this Interrogatory as seeking information already in the Complainants’ possession, as Complainants allege that they paid the Charges identified in the Complaint.

To the extent COSCO’s objections to Supplemental Interrogatory 14 are the same as its objections to Supplemental Interrogatory 8 (number and vagueness), they are overruled for the same reasons. COSCO also argues that it has already produced the documents it might use in responding to this interrogatory, and so has “already responded fully in accordance with the FMC Rules.” Resp. to Mot. to Compel 10. As discussed above, COSCO may not decline to produce information in its control because Complainant may already have some or all of the information, nor may it bury the answer in a document dump and invite Complainant to hunt for it. If COSCO has already produced documents that show payments made on the disputed invoices and identify the payors, it must point Complainant to the specific document or range of documents that contains this information. Otherwise, COSCO must provide a complete response to Interrogatory 14.

Supplemental Interrogatory 16. If some of the shipments referenced in paragraphs 13–15 of the Complaint and **Exhibit A** were carried under CY-to-CY terms, please explain whether, as part of a CY arrangement or any other type of transportation arrangement used for each shipment in paragraphs 13–15 of the Complaint and **Exhibit A**, it is Your responsibility as a vessel operating common carrier to ensure that containers arriving at U.S. ports and terminals remain accessible and retrievable during the Last Free Day (“LFD”) period You provide.

- a. If yes, describe in detail the policies, procedures, or practices You employ to meet that responsibility.
- b. If no, describe in detail the reason(s) why it is not Your responsibility, including reference to the specific terms in any relevant service agreement or other arrangement applicable to each such shipment, which indicate that it is not Your responsibility.

ANSWER: Respondent objects to this Interrogatory as exceeding the permissible number of interrogatories. Respondent further objects to this Interrogatory as vague, overly broad and beyond the permissible scope of discovery.

COSCO’s objections to Supplemental Interrogatory 16 are the same as its objections to Supplemental Interrogatory 8 (number and vagueness). Resp. to Mot. to Compel 12. They are

overruled for the same reasons. COSCO must provide a complete answer to Supplemental Interrogatory 16.

III. Order

Accordingly, it is hereby

ORDERED that Complainant's Motion to Compel [Dkt. 46] is **GRANTED IN PART**. It is further

ORDERED that COSCO conduct any necessary searches and produce complete responses, as discussed above, to Complainant's Requests for Production 3 and 11, and to Supplemental Interrogatories 8, 10-14, and 16 no later than **May 23, 2025**. It is further

ORDERED that Complainant's motion is **DENIED** with respect to Complainant's Interrogatory 5, Requests for Production 7 and 8, and Supplemental Interrogatory 4. It is further

ORDERED that Complainant's Unopposed Motion for Enlargement of Page Limits [Dkt. 47] is **GRANTED *nunc pro tunc***.

SO ORDERED.

**ALEX
CHINTELLA**

Digitally signed by
ALEX CHINTELLA
Date: 2025.05.15
11:36:40 -04'00'

Alex M. Chintella
Administrative Law Judge